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California Becomes First State to Ban Four Additives in Food

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WEDNESDAY, Oct. 11, 2023 (HealthDay News) – California has become the first state to ban four chemicals commonly added to food that are linked to health issues.

Although the law, signed by Gov. Gavin Newsom, only bans the additives in his state, it's possible the chemicals could be removed from products across the country, NBC News reported.

The chemicals are red dye No. 3, potassium bromate, brominated vegetable oil and propylparaben. All four are currently approved by the U.S. Food and Drug Administration, but they are illegal in the European Union and some other parts of the world, NBC News reported.

"The additives addressed in this bill are already banned in various other countries," Newsom said in a statement. "Signing this into law is a positive step forward on these four food additives until the United States Food and Drug Administration [FDA] reviews and establishes national updated safety levels for these additives."

Assembly member Jesse Gabriel introduced the bill with Assembly member Buffy Wicks.

Gabriel said that the law won't eliminate the foods these additives typically go in -- ranging from orange soda to hamburger rolls and candies -- but the manufacturers will need to make "really minor" changes to ingredients.

"We have incredible confidence that consumers are still going to be able to enjoy all the products that we know and love here in the United States, just without those harmful chemicals," Gabriel told NBC News.

The law will go into effect in 2027, NBC News reported.

This gives brands time to revise recipes and "establishes national updated safety levels for these additives," until the FDA makes changes, Newsom said.

"The state is stepping up to protect people," Gabriel said.

The Environmental Working Group, a research and advocacy health organization, said manufacturers are likely to swap out these ingredients nationwide for up to 12,000 products, NBC News reported.

The agency has continued to stand by allowing the ingredients in food, though it is working on a proposed rule to remove authorization for brominated vegetable oil, according to an FDA spokesperson.

The spokesperson told NBC News that the agency "evaluates and regulates ingredients added to food to ensure that the authorized use of these ingredients is safe."

Gabriel noted rule changes can take years.

"The first and foremost objective is to protect kids and families and consumers in the state of California," he said. "But a secondary objective here was to make a point and to send a message to the FDA and to folks in Washington, D.C., about just how badly the FDA process is broken."

Red dye is used to color foods. Potassium bromate is added to flour to help bread rise higher. Brominated vegetable oil is an emulsifier used in citrus drinks. Propylparaben is a preservative.

Among them, the products have been associated with behavioral problems in children, cancer in lab animals, reproductive issues in animals and endocrine disruption, NBC News reported.

The National Confectioners Association, a trade association for candy makers, spoke out against the bill.

"Governor Newsom's approval of this bill will undermine consumer confidence and create confusion around food safety," the group said in a statement. "This law replaces a uniform national food safety system with a patchwork of inconsistent state requirements created by legislative fiat that will increase food costs."

More information

The National Library of Medicine has more on food additives.

SOURCE: NBC News

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